

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nicole Stern	Team: Squad #05	CCRB Case #: 202400967	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 01/18/2024 1:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/18/2025	Precinct: 78		
Date/Time CV Reported Thu, 01/18/2024 2:24 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 01/29/2024 12:05 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Karlvirn Williams	04860	969429	084 PCT
2. PO Conor McGouran	31638	972102	084 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Conor McGouran	Abuse: Police Officer Conor McGouran stopped § 87(2)(b)	A . Substantiated
B . PO Karlvirn Williams	Abuse: Police Officer Karlvirn Williams stopped § 87(2)(b)	B . Unable to Determine
C . PO Conor McGouran	Abuse: Police Officer Conor McGouran failed to activate his body-worn camera.	C . Substantiated
D . PO Karlvirn Williams	Abuse: Police Officer Karlvirn Williams failed to activate his body-worn camera.	D . Unable to Determine
E . PO Karlvirn Williams	Abuse: Police Officer Karlvirn Williams searched § 87(2)(b)	E . Unable to Determine
F . PO Conor McGouran	Abuse: Police Officer Conor McGouran failed to explain to § 87(2)(b) the reason for a law enforcement activity.	F . Substantiated
G . PO Conor McGouran	Abuse: Police Officer Conor McGouran refused to provide his name to § 87(2)(b)	G . Unable to Determine
H . PO Karlvirn Williams	Abuse: Police Officer Karlvirn Williams refused to provide his name to § 87(2)(b)	H . Unable to Determine
I . PO Conor McGouran	Abuse: Police Officer Conor McGouran refused to provide his shield number to § 87(2)(b)	I . Unable to Determine
J . PO Karlvirn Williams	Abuse: Police Officer Karlvirn Williams refused to provide his shield number to § 87(2)(b)	J . Unable to Determine
K . PO Karlvirn Williams	Abuse: Police Officer Karlvirn Williams failed to provide § 87(2)(b) with a business card.	K . Unable to Determine
L . PO Conor McGouran	Abuse: Police Officer Conor McGouran failed to provide § 87(2)(b) with a business card.	L . Substantiated
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)

Case Summary

On January 18, 2024, § 87(2)(b) filed this complaint by phone with IAB, generating original log § 87(2)(b). The CCRB received the complaint on January 29, 2024.

On January 18, 2024, at approximately 1 p.m., § 87(2)(b) and his friend § 87(2)(b) were walking through the § 87(2)(b) NYCHA development § 87(2)(b) in Brooklyn. PO Conor McGouran and PO Karlvrn Williams of the 84th Precinct approached them in an unmarked vehicle. PO McGouran stopped § 87(2)(b) (**Allegation A: Abuse of Authority, substantiated**). PO Williams allegedly stopped § 87(2)(b) (**Allegation B: Abuse of Authority, unable to determine**). PO McGouran failed to activate his body-worn camera during the incident (**Allegation C: Abuse of Authority, substantiated**). PO Williams allegedly failed to activate his body-worn camera (**Allegation D: Abuse of Authority, unable to determine**). PO Williams allegedly searched § 87(2)(b) (**Allegation E: Abuse of Authority, unable to determine**). PO McGouran failed to explain the reason the stop to § 87(2)(b) (**Allegation F: Abuse of Authority, substantiated**). PO McGouran and PO Williams allegedly failed to provide their names and shield numbers to § 87(2)(b) (**Allegations G-J: Abuse of Authority, unable to determine**). PO Williams allegedly failed to provide a business card to § 87(2)(b) (**Allegation K: Abuse of Authority, unable to determine**). PO McGouran failed to provide a business card to § 87(2)(b) (**Allegation L: Abuse of Authority, substantiated**). PO McGouran failed to prepare a memo book entry and a stop report as required (**Allegations M-N: Other Possible Misconduct Noted**). No arrests or summonses resulted from this incident.

Neither officer activated his BWC during the incident. The investigation obtained NYCHA surveillance footage (BR 01-05, summarized at BR 06), as well as a screen recording of § 87(2)(b) Facetime video call at the conclusion of the incident (BR 07-08, summarized at BR 09). All references to video evidence below refer to the time stamp in the video player, and not to any on-screen clock embedded in the footage itself.

This case was initially assigned to Inv. Julia Sapienza and was re-assigned to the undersigned on May 23, 2024.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Conor McGouran stopped § 87(2)(b)
Allegation (B) Abuse of Authority: Police Officer Karlvrn Williams stopped § 87(2)(b)
Allegation (C) Abuse of Authority: Police Officer Conor McGouran improperly used his body-worn camera.
Allegation (D) Abuse of Authority: Police Officer Karlvrn Williams improperly used his body-worn camera.
Allegation (E) Abuse of Authority: Police Officer Karlvrn Williams searched § 87(2)(b)
Allegation (F) Abuse of Authority: Police Officer Conor McGouran failed to explain to § 87(2)(b) the reason for a law enforcement activity.

§ 87(2)(b) stated (BR 10) that he and § 87(2)(b) were walking east through § 87(2)(b) carrying a laundry bag full of clothes. § 87(2)(b) was on Facetime with his girlfriend while he was walking. As they were passing § 87(2)(b), § 87(2)(b) noticed a car driving on the path behind them. The vehicle pulled in front of § 87(2)(b) and § 87(2)(b). PO McGouran exited the car and approached § 87(2)(b) while telling him, “Stop. Give me your ID.” PO Williams exited the car, approached § 87(2)(b) and asked for his ID. § 87(2)(b) provided his ID to PO Williams. § 87(2)(b) asked the officers why they were being stopped multiple times throughout the interaction.

At no point did either officer respond to his question. PO Williams grabbed § 87(2)(b) fanny pack, and § 87(2)(b) initially recounted that PO Wineski looked through the pack, but he ultimately was inconsistent on the question of whether PO Wineski searched the pack. § 87(2)(b) gave his ID to PO McGouran, who appeared to use it to run some sort of search on his NYPD cellphone. PO Williams appeared to do the same process with § 87(2)(b) ID.

§ 87(2)(b) was uncooperative and the investigation was unable to obtain a statement from him.

The NYCHA CCTV video (BR 05, at 06:40) only captures the interaction from a distance. It shows § 87(2)(b) and § 87(2)(b) walking on a path from left to right at the top of the screen. PO Williams drives an unmarked sedan beside the two men and stops just ahead of them. They continue walking around it, while at the same time PO McGouran arrives on foot, also moving from left to right. The car pulls forward again and PO Williams exits. PO Williams approaches § 87(2)(b) and PO McGouran approaches § 87(2)(b). The officers converse with the men for two minutes and 17 seconds. During that time, one of the officers enters the vehicle for one minute and 12 seconds and exits again. Both officers re-enter the car and start driving in reverse. § 87(2)(b) follows the car for 57 seconds and then walks away. The footage is too distant and indistinct to see whether PO Williams searches § 87(2)(b) fanny pack. The FaceTime screen recordings mentioned above began after the officers had already reentered their vehicle to leave (BR 07-08).

In his CCRB interview (BR 11), PO McGouran stated that he was sitting in the passenger seat going west on § 87(2)(b) when he saw § 87(2)(b) and § 87(2)(b) on the southeast corner of § 87(2)(b). PO McGouran described the location as a drug-prone area, though he did not specify the boundaries of the area and did not provide any further information regarding what made it prone to drugs. PO McGouran also noted that he had received advanced narcotics training about four months before the incident, in a course called “High Intensity Drug Trafficking Areas.” § 87(2)(b) and § 87(2)(b) were on the sidewalk approximately 25 feet from the curb, with their backs turned toward the intersection and their hands moving level with their hips. Based on his observations, PO McGouran believed the men could be engaged in a hand-to-hand transaction of narcotics. However, he admitted that he did not see either man holding currency, bags, or anything else in their hands, and he did not claim to have actually seen them exchange anything. PO McGouran believed he and PO Williams saw this at approximately the same time, but they did not have any conversation about what they observed or what action they were going to take. PO McGouran decided that he wanted to get identification for the men so he could “know who’s coming around...the area.” He did not believe asking for identification and running a license database search constituted “police action,” and he did not intend to do anything that would be “police action.” The officers followed the men into the § 87(2)(b). At some point, PO McGouran exited the car and followed on foot. The men stopped walking when PO Williams stopped the vehicle near them, and PO McGouran spoke to § 87(2)(b) while PO Williams spoke to § 87(2)(b). PO McGouran asked § 87(2)(b) for his ID, and § 87(2)(b) provided it. PO McGouran went into the passenger seat of the vehicle in order to run § 87(2)(b) license. § 87(2)(b) and PO Williams remained at the back of the car. PO McGouran did not see or hear anything that happened during the few minutes he was in the car. When PO McGouran ran the license, he only saw § 87(2)(b) pedigree information. Once he ran the license, he returned it to § 87(2)(b) and then went back into the vehicle. Even though PO McGouran never informed him of this, § 87(2)(b) was free to leave at any point during the encounter. PO McGouran did not tell § 87(2)(b) that he could leave at any point, nor that he could refuse to provide his ID. PO McGouran did not activate his BWC during this incident because he did not consider the encounter a “police action.” He did not provide an explanation for the stop to § 87(2)(b) because he did not believe he was conducting a stop at all.

PO Williams recounted (BR 12) that he did not have any suspicion about § 87(2)(b) and § 87(2)(b) possibly engaging in a hand-to-hand drug transaction. They appeared to be talking and looking around. He believed that one of the men appeared nervous, but he could not recall which man this was. PO Williams recalled that the men were carrying bags, but he was unable to remember what type of bags, the size of the bags, or their appearance. PO Williams believed one of the men might have had a backpack. PO Williams did not know if the men had been the victim of a crime, or if they were merely lost, or if they were completely fine. PO Williams did not suspect either of the men of any crime. PO Williams believed he asked PO McGouran, “Are they good?” before they started following the men in the car. PO Williams has approached civilians in the past to have a conversation or check on them. When PO Williams exited the vehicle and approached § 87(2)(b) he told § 87(2)(b) that he and § 87(2)(b) were free to leave, but that he just wanted to make sure the two of them were okay. § 87(2)(b) said that he and § 87(2)(b) were fine, and he mentioned that he was either trying to find a shelter or was currently staying in a nearby shelter. PO Williams asked if § 87(2)(b) had any questions for him, and § 87(2)(b) asked for directions. PO Williams could not recall to where § 87(2)(b) was asking for directions, but he told § 87(2)(b) to keep walking straight and he would reach the destination. PO Williams told § 87(2)(b) to have a good day and returned to the vehicle. PO Williams did not ask § 87(2)(b) for his ID. PO Williams did not ask for consent to search § 87(2)(b) or his belongings. PO Williams never touched § 87(2)(b). PO Williams did not frisk or search § 87(2)(b) nor his belongings. PO Williams did not activate his BWC during this encounter because officers are not required to record conversations that are not a part of a police action.

A warrant audit (BR 22) confirmed that PO McGouran ran a search for § 87(2)(b) name during their interaction. There was no record of anyone running any searches for § 87(2)(b) name.

Absent additional evidence, the investigation could not determine whether PO Williams took § 87(2)(b) identification, nor whether PO Williams searched § 87(2)(b) fanny pack.

Officers may approach a civilian to request information if they have an objective credible reason for doing so. A reason is objectively credible if it is based on more than a hunch or a whim. The reason to gather more information may relate to a public safety/service function or a law enforcement function. The objective of such an encounter is to gather information and not to focus on the civilian as a potential suspect, and the officers need not have any suspicion of criminal activity. The officers may not ask accusatory questions, and they may not create a situation (either by words or actions) where a reasonable person would not feel free to leave. Officers may ask a civilian questions which are more pointed or accusatory only if they have founded suspicion that criminal activity is afoot. Founded suspicion arises when there is some present indication of criminality based on observable conduct or reliable hearsay information. If officers have no more than founded suspicion, then they may not create a situation where a reasonable person would not feel free to walk away. If an officer takes actions during an encounter with a civilian which would lead a reasonable person to no longer feel free to disregard the officer and walk away, then the officer has stopped the civilian. Officers may only stop a civilian when they have an individualized reasonable suspicion that the person has committed, is committing, or is about to commit a felony or Penal Law misdemeanor. Officers are permitted to ask a civilian to verbally identify himself or present an ID during any type of encounter. However, when performing this task during a request for information or a common law inquiry, the officers must not create a situation where the civilian does not feel free to leave. Patrol Guide Procedure 212-11 (BR 13); *People v. De Bour*, 40 N.Y.2d 210 (1976) (BR 22).

Officers are required to activate their BWCs prior to engaging in any police action. Police action is defined as, “Any police service, as well as law enforcement or investigative activity conducted in

furtherance of official duties. Police action includes responding to calls for service, addressing quality of life conditions, handling pick-up assignments, and any self-initiated investigative or enforcement actions such as witness canvasses, vehicle stops, and Investigative Encounters. Routine casual conversations with members of the public carried out as part of community engagement efforts are not considered police action.” NYPD Patrol Guide Procedure 212-123 (BR 14).

Officers are required to explain the reason for law enforcement activities, unless providing this information would impair a criminal investigation, or exigent circumstances are present (i.e., physical resistance, flight, imminent danger of physical injury or damage to property, or other factors make such procedure impractical). A stop constitutes a law enforcement activity, as does any questioning which requires founded suspicion. NYPD Administrative Guide Procedure 304-11 (BR 15).

It is clear from PO McGouran’s own account of the incident that he stopped § 87(2)(b). He took § 87(2)(b) ID and brought it into the police vehicle in order to run a warrant check. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation A** be closed as **substantiated**.

§ 87(2)(g) § 87(2)(b) It is therefore recommended that **Allegations C & F** be closed as **substantiated**.

PO Williams recounted that he told § 87(2)(b) that he was free to leave at the beginning of the encounter, that he merely enquired as to whether they were ok and gave directions to § 87(2)(b) and that he never obtained § 87(2)(b) ID or searched him. § 87(2)(g) It is therefore recommended that **Allegations B & E** be closed as **Unable to Determine**. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation D** be closed as **unable to determine**.

Allegation (G) Abuse of Authority: Police Officer Conor McGouran refused to provide his name to § 87(2)(b)

Allegation (H) Abuse of Authority: Police Officer Karlvirn Williams refused to provide his name to § 87(2)(b)

Allegation (I) Abuse of Authority: Police Officer Conor McGouran refused to provide his shield number to § 87(2)(b)

Allegation (J) Abuse of Authority: Police Officer Karlvirn Williams refused to provide his shield number to § 87(2)(b).

Allegation (K) Abuse of Authority: Police Officer Karlvirn Williams failed to provide § 87(2)(b) with a business card.

Allegation (L) Abuse of Authority: Police Officer Conor McGouran failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) stated that he requested both officers' names, shield numbers, and business cards multiple times, both when the officers were on foot and after they reentered the police vehicle. They never responded to his requests. As noted above, the FaceTime screen recordings began after the officers had already reentered their vehicle to leave (BR 07-08).

PO McGouran stated that he did not recall § 87(2)(b) asking for his name, shield number, or business card. PO McGouran had business cards on him at the time, but he did not proactively offer one to § 87(2)(b). When he and PO Williams returned to the car, they drove in reverse until they reached § 87(2)(b). § 87(2)(b) started following the car while it reversed, but PO McGouran could not recall how long or how far he followed them. The windows of the vehicle were rolled up, so PO McGouran could not hear if § 87(2)(b) was saying anything to the officers. PO McGouran did not believe that § 87(2)(b) following their car was an indication that he wanted to request information from the officers.

PO Williams denied that § 87(2)(b) requested his name, shield number, or business card. After his conversation with § 87(2)(b) concluded, he and PO McGouran reentered the vehicle and PO Williams reversed out of the complex. § 87(2)(b) continued walking away from § 87(2)(b) while § 87(2)(b) walked toward § 87(2)(b) in the same direction as the officers. § 87(2)(b) was holding his phone up in front of his chest and appeared to be talking to someone on FaceTime. PO Williams did not believe § 87(2)(b) was following the officers, and he did not hear § 87(2)(b) say anything to them. PO McGouran did not tell PO Williams what occurred during his conversation with § 87(2)(b). PO Williams did not provide anyone with a business card because he only interacted with § 87(2)(b) and they merely had a conversation.

Officers are required to courteously and clearly state their ranks, names, shield numbers, and commands, or otherwise provide them, to anyone who requests them. Officers are also required to proactively offer a business card to anyone whom they stop. NYPD Administrative Guide Procedure 304-11 (BR 16).

§ 87(2)(g) It is therefore recommended that **Allegations G–J** be closed as **unable to determine**. § 87(2)(g)

§ 87(2)(g) it is therefore recommended that **Allegation K** also be closed as **unable to determine**. § 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation L** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which either § 87(2)(b) or § 87(2)(b) have been a party (BR 19-20).
- PO McGouran has been a member of the NYPD for three years and has been a subject in one CCRB complaint and four allegations, none of which were substantiated. § 87(2)(g)
- PO Williams has been a member of the NYPD for four years and has been a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of July 17, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (BR 17).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 5

Investigator:	<u>Nicole Stern</u>	<u>Inv. Stern</u>	<u>9/12/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Daniel Giansante</u>	<u>IM Daniel Giansante</u>	<u>September 24, 2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date